MSASA PARK (PRIVATE) LIMITED
versus
PAINA MACHIDZA
and
EGENATOR SAUROMBE
and
EPHRAIM KANYIMO
and
MARIA BHEPE
and
COSMAS MUKONDA
and
BEAUTY MUSODZA
and
SAMUDOKA ZAVEDO
and
EMMANUEL KURI
and
ONISIMUS MAKAU
and
CELANI MSINGO
and
LAILA MAKWINJA
and
FARAI CHARAKUPA
and
SHAME MAPAKO
and
CLIPWELL GOWE
and
ONWELL MAFUTA
and
WELLINGTON GUNHE
and
DOUGMORE MUNAKAMWE
and
NOAH KAMUZUNGUZE
and
NESBERT MUZARAHWA
and
JOSEPH MAIROSI
and
VIRGINIA SIZIBA
and

GETRUDE MUNETA
and
COSMAS GUMIREMHETE
and
MARGARET JACOB
and
FABULA MACHIDZA
and
ALEXIO MABIYA
and
FRANCIS MADANHI
and
GILBERT NYAMWEDA
and
SYDNEY GANDIRA
and
MEBOLE WHITE
and
CHIPO CHIPUNDU
and
ANTHONY SHONGEDZA
and
ISAU MANGABA
and
MERCY HAMA
and
EDWARD MUTISI
and
BRIGHTON DZUDA
and
JACKSON MUTINDIZA
and
KUDZANAI MATUMBURA
and
FRANK KARINDAUTOWA
and
GODFREY DHLANA
and
DANIEL MACHEKA
and
WONDER MUNETSI
and
F. GUTSA
and

S. TORE
and
JUDITH SIMANGO
and
YEUKAI JITI
and
DICKSON MAKUREYA
and
MORRIS KANYAI
and
MUNYARADZI CHIPATISO
and
PAULINE TAPFUMA

HIGH COURT OF ZIMBABWE
DEMBURE J
HARARE, 15 & 29 May 2026

Opposed Application

S. Banda with *F. Zuva,* for the applicant
B. Pabwe, for the 1st respondent
R. G. Zhuwarara, for the 2nd-4th, 7th, 12th, 14th-16th, 18th-20th, 22nd-23rd, 26th-27th, 29th-32nd, 34th-35th, 37th, 39th-42nd, and 44th-50th respondents

DEMBURE J:

INTRODUCTION

This is a court application for summary judgment wherein the applicant seeks an order for the eviction of the respondents from stands in Msasa Park, Harare, as fully listed in the schedule to the summons in Case No. HCH 322/25 being subdivisions of stand 560 Chadcombe Township held under Certificate of Consolidated Title No. 1939/1990 (*"the property"*). The application is made in terms of r 30(1) as read with r 59(1) of the High Court Rules, 2021. The application was filed against all the fifty respondents, who are also the defendants in the action proceedings in Case No. HCH 322/25. However, in the draft order attached to the application, no relief is sought against the 10th, 11th and 24th respondents. The application is opposed.

Before the matter was heard, the 1st respondent withdrew her notice of opposition, which she had filed together with the other respondents represented by Mr *Zhuwarara*. This development meant that the other respondents had nothing substantive to support their opposition with. This is so as they had simply adopted the averments in the 1st respondent's opposing affidavit, which, by the withdrawal, were no longer before the court. With the consent of the parties, the remaining respondents contesting the relief sought were granted leave to place before the court their substantive opposing papers to take the place of the papers affected by the withdrawal of the 1st respondent's opposing papers.

On 15 May 2026, the court entered a consent judgment in respect of the 1st respondent in accordance with the Deed of Settlement she had concluded with the applicant and filed on 12 May 2026. Mr *Pabwe*, counsel for the 1st respondent, was thereafter excused from the proceedings. I subsequently heard argument from counsel for the applicant and the remaining respondents, namely the 2nd-4th, 7th, 12th, 14th-16th, 18th-20th, 22nd-23rd, 26th-27th, 29th-32nd, 34th-35th, 37th, 39th-42nd, and 44th-50th respondents (*"the respondents"*) on the merits of the application for summary judgment and reserved my judgment *sine die*.

THE BACKGROUND

On 24 January 2025, the applicant instituted an action seeking an order for the eviction of the respondents and anyone claiming occupation through them from the stands in dispute, the demolition of the structures erected thereon and costs of suit on a higher scale in Case No. HCH 322/25. The claim is one for the remedy of *rei vindicatio*. The respondents entered appearances to defend and filed their plea through their erstwhile legal practitioners, Kuchidza Law Chambers. The applicant went on to file the present application on 10 April 2026, alleging that the respondents have no *bona fide* defence to the claim and that they had entered an appearance to defend solely to buy time and harass the applicant.

It was pleaded for the applicant that it is the registered owner of the property called stand 560, Chadcombe Township, measuring 279,8393 hectares, which is the piece of land on which the subdivisions, or the stands occupied by the respondents, are situated. The applicant claimed that, as the owner, it seeks to vindicate its property. It was not in dispute that the respondents are

in occupation of the stands or the property. The applicant asserted that they illegally took possession of its property and have remained in occupation thereof without its consent to date. That they went on to effect improvements to the land not sanctioned by the applicant or the local authority.

The contention was further that their defence that they are lawfully in occupation of the property after being allocated by ZANU-PF Mukuvisi-Tashinga District, which they alleged had been offered the same property by the applicant for no consideration whatsoever, was not genuine. This is so as they had previously sought to assert rights from the alleged donation for the stands but failed. The court was referred to the judgment by MUCHAWA J in the matter of *Paina Machidza & Ors* v *Msasa Park (Pvt) Ltd,* registered under Case No. HC 6446/23. See *Paina Machidza* v *Msasa Park (Pvt) Ltd* HH 286/24. It is common cause that the appeal thereof in Case No. SC 423/24 was deemed abandoned and dismissed, and the attempt to seek the reinstatement of the appeal in Case No. SC 554/24 was unsuccessful.

It was also averred that the court made findings in respect of the alleged donation, and the issue is now *res judicata*. The judgment by MUCHAWA J remains extant. The applicant also related to an application seeking to assert the alleged donation that was struck off the roll before MANYANGADZE J in the matter of ZANU-PF *Mukuvisi-Tashinga District* v *Msasa Park (Pvt) Ltd* in Case No. HCH 3207/24. The applicant sought the relief in terms of the draft order with punitive costs.

The respondents, in their opposition, challenged the validity of the directorship of the deponent to the applicant's founding affidavit, one Thomas Robert Ritchie (*"Mr Ritchie"*), on the basis that he could not have been validly appointed as a director since he was once published in the Gazette as a specified person on 30 July 2013. They also contended that it would not be possible for the applicant's directors to be appointed since, upon their search of the company file at the Registrar of Companies' office, the file or record could not be located. They further stated that they had previously been defrauded and had requested the minutes of the appointment of the purported directors through the applicant's legal practitioners, but received no response.

The respondents maintained that they were lawful occupants allocated the stands by ZANU-PF Mukuvisi-Tashinga District. It was further contended that the position adopted in the previous proceedings, namely that there was a donation between the applicant and ZANU-PF Mukuvisi-Tashinga District, was a flawed defence which they had now abandoned. Their defence was now that the applicant offered the piece of land to ZANU-PF Mukuvisi-Tashinga District for no consideration whatsoever, through their erstwhile legal practitioners, F. G. Gijima & Associates, in 2012, and that the offer was accepted. They were then allocated the subdivisions by ZANU-PF Mukivisi-Tashinga District, which had derived title in the property from the applicant. They also stated that they were not part of the Housing Cooperatives, which were evicted in 2013. It was also contended that the matter determined before MUCHAWA J is different from the present matter, which ought to be determined differently. They insisted that they have a *bona fide* defence and that the matter must proceed to trial. Their prayer was for the dismissal of the application with punitive costs.

The record is clear that the application was heard before KATIYO J, who granted summary judgment against the respondents. The respondents lodged an appeal in the Supreme Court under Case No. SC 915/25. The appeal was heard on 13 February 2026, and the following order was issued:

> "1. By consent, the matter be and is hereby removed from the roll with costs for the reason that it was deemed abandoned and dismissed by operation of law.
>
> 2. In the exercise of this Court's review powers in terms of section 25 of the Supreme Court Act. Chapter 7:13 the judgment of the court *a quo* in HCH 322/25 dated 1 July 2025 granting summary judgment against the appellants be and is hereby set aside with no order as to costs."

The order of the Supreme Court paved the way for the application to be heard *de novo* before me. The parties presented their full argument on the merits on 15 May 2026. The previous hearings were mainly case management sessions. The following oral submissions were made before me.

SUBMISSIONS BY COUNSEL

SUBMISSIONS FOR THE APPLICANT

Mr *Banda,* submitted that the applicant was abandoning the prayer in para 3 of the draft order. He accordingly sought the amendment of the draft order by the deletion of para 3 thereof. He further submitted that he was making two critical points. The first, he argued, is that this is a classic case in which summary judgment ought to be granted. This is particularly so because the respondents simply have no defence to the claim. It is noted that they attempt to raise the issue of the directorship of the applicant. This is covered in the supplementary heads of argument. The respondents continue to recycle the issue over and over again without any success. Even if they are permitted to recycle this issue of directorship, it is not a defence to the claim for a vindication.

Counsel went on to argue that the respondents have not rebutted the title deed, which is in the applicant's favour. The offer letter they want to relate to is on p 90 of their opposing papers and is not in the name of any of the respondents. They cannot claim a right arising from that alleged offer letter. Without any of the accepted defences to the *rei vindicatio*, the present application must succeed.

It was further submitted that, on the second point, the respondents move the court to consider that they have been residing on the property for an average of 12 years between them and have effected improvements to the property. They also urge the court to consider that no options are available to them. In their words, they say the applicant has been very rigid in its approach. It is accepted that this court cannot ignore these considerations, but the established authorities are clear that it engages in a balancing act that also considers the applicant in this matter. He urged the court to consider that the respondents cannot stay on the applicant's property *ad infinitum* for no consideration, which is what they propose. The court must also consider that there is no written consent to the improvements which they claim to have effected.

He also argued that the applicant gave the respondents an opportunity to regularise their stay, and the terms, including the price of US$15.00 per square, are so magnanimous. The first respondent and many others in the area have accepted the offer. This shows that the respondents have an option. They did not even engage the applicant, despite another opportunity arising from the court adjournment. They simply do not want to pay for the land, but they also do not want to be evicted from it. They want the applicant's land for free. The court cannot lend a hand to an

illegality. He accordingly submitted that he respectfully moves the court for an order in terms of the amended draft.

When the court queried if counsel was still insisting on punitive costs, Mr *Banda* argued that the circumstances are ripe for such an order of costs on a higher scale, considering that the applicant has tried to be magnanimous in its attitude towards the respondents, but it appears that they are not genuine in their representations. That costs are within the court's discretion, but upon a consideration of the circumstances, he urges the court to exercise its discretion in favour of granting costs on a higher scale.

SUBMISSIONS FOR THE RESPONDENTS

Per contra, Mr *Zhuwarara* submitted that from the applicant's cause of complaint, there is no basis for eviction. He pointed out that in para (5), there is an allegation that the respondents illegally took occupation. That is the cause of the complaint. However, when we go to para (8), the complaint is that the respondents refused to pay the applicant what they considered to be the fair intrinsic value of the land. If it is true that the land was occupied illegally, then there would be no need for the applicant to engage the respondents to agree on what they call the fair intrinsic value. The claim for a fair intrinsic value is the cause of action that the applicant should have pursued.

Counsel further argued that our courts have recognised that one can challenge eviction if one can show that the owner gave the occupant permission to be on the land in question. He relied on the case of *January* v *Maferefu* SC 14/20. It was submitted that we have an owner who gave permission to the respondents to occupy the land in question. That is considered a valid defence against eviction. At pp 86 to 90, that story becomes apparent. There is an affidavit from the former director. There is a letter from the applicant's erstwhile legal practitioners confirming that this land was given to ZANU-PF and that ZANU-PF, in turn, gave that land to the respondents. That is an extract of how that land was allocated to the respondents. This is to show that there was a system in place. The applicant surrendered possession in favour of the respondents. This is why they come back later on and attempted to agree on a fair intrinsic value. There is an underlying transaction, and this is why these issues are not best articulated in

summary judgment proceedings. How the respondents came to be on the land is supported by the documents available to this court, which show that there is a *bona fide* defence. The present application ought to be dismissed.

Mr *Zhuwarara* further contended that s 74 of the Constitution of Zimbabwe, 2013 is applicable. He argued that, if we consider the case of *Zuze* v *The Trustees Mlambo & Anor* SC 69/19, the court is being asked to consider the surrounding circumstances. The respondents have been on the land in question for over 12 years. The court in *Zuze* considered that a lengthy period must be taken into consideration. It becomes extremely unfair to uproot people and we do not know where they want to put them. The Supreme Court outlines critical principles we must consider when an eviction order is to be granted. One of those principles is that one should not be evicted into homelessness. This is the respondent's case. Once they are evicted, they are homeless. They have nowhere to go. It becomes an issue by virtue of s 74.

It was further submitted that the second principle is that people facing eviction should be given a meaningful opportunity to participate in the resolution of the eviction dispute. The matter cannot be determined in terms of an application procedure, particularly that of summary judgment. This has to go to trial so that the respondents are given a full opportunity to tell their story and to show the court that the order being sought is not warranted. The *Zuze* case is very important because it holds that even if the defendant or respondent has no defence, s 74 disregards the merits of eviction. Even if the court were to say eviction can be granted, it is empowered to place conditionalities in respect of the order of eviction, and that might include an extension or a notice period that is long enough to enable people to come up with alternatives. Section 74 protects occupants from summary eviction.

Counsel also contended that the incapacity of the deponent affects the application. It was argued that the deponent was considered a fugitive from justice and was not there when transactions ensued from 2013 onwards, in terms of what was actually happening between the parties. He cannot be the person with the knowledge and the capacity to depose to the facts which support summary application as contemplated in terms of the rules because he was a specified person. The applicant did not deal with this issue. It must be taken as admitted. Counsel further contended that the deponent to the founding affidavit is not a director of the

applicant company and does not have personal knowledge of the facts relating to the eviction. Reference was made to the case of *Bubye Minerals (Pvt) Ltd & Anor* v *Rani International Ltd* SC 60/06, where the Supreme Court struck off an application on the basis that the deponent did not have personal knowledge of the facts in question.

Mr *Zhuwarara* went to submit that there was a reference to the judgment by MUCHAWA J, which does not make a determination on the competence of Thomas Ritchie as a director. The court concluded that this issue relating to his directorship constitutes a material dispute of fact. The court did not determine this issue and, therefore, this court is not disabled to ventilate whether or not this director is competent, is a director at all or capable of representing the applicant.

Counsel also argued that the correct test regarding summary judgment proceedings is that the respondent or defendant must not prove their defence; they must merely allege facts. Those facts have been alleged and will suffice to defend against a claim for eviction. He prayed that the application be dismissed. When the court queried whether the respondents were parties to the matter determined by MUCHAWA J, counsel initially submitted that they were not parties to it. When I further probed whether counsel was sure about that position, he indicated that some were parties, but others were not. He also admitted that he was not involved at that stage. I hasten to state that I managed to peruse the record thereof, and I will relate to that later.

Mr *Zhuwarara* was at pains to explain how the respondents now allege what they now simply call an 'offer', while all along they were arguing on the existence of a donation, and even attached an affidavit claiming that the then applicant's director had confirmed the alleged donation. He argued that there was no donation, but Mr Mike called it a donation because he is not trained in the technicalities of law. Thus, what he said was not a 'donation' in the sense we understand it, as a court or legal practitioners, but rather that this land was given to the respondents to occupy for no consideration. Counsel said this despite the fact that there was no evidence to substantiate that the said individual did not appreciate what a 'donation' is or that he was not trained in law.

Counsel further admitted that it was common cause that there was no deed of donation, but claimed that the applicant surrendered occupation of its land to the respondents. When I also enquired as to whom the alleged offer was made, Mr *Zhuwarara* submitted that it was addressed to ZANU-PF Harare Province. He accepted that ZANU-PF Mukuvisi-Tashinga is not a legal person, but argued that the offer was communicated to the ZANU-PF province, and that is the body or entity the company was actually communicating with. He further accepted that the legal formalities were not followed, but argued that the respondents were given permission to reside on this piece of land. He contended that a trial would be required for the witness to tell the court what he meant by 'donation' or what he meant by 'offer'. He also submitted that paras 3.5 as read with 3.6 of the opposing affidavit at p 7 of the respondents' papers cannot be taken as a concession that the respondents' possession of the property is illegal. He stated that the averments in those paragraphs show a relationship between the applicant and the respondents in respect of their occupation. The disagreement was over the payment of what it considered to be fair intrinsic value. That birthed the dispute. He also stated that their occupation is not illegal because they have established that they were given permission to be on the land in question. The real dispute is the payment of intrinsic value.

REPLYING SUBMISSIONS FOR THE APPLICANT

In his reply, Mr *Banda* submitted that counsel for the respondents mischaracterised para(s) 6-9 of the declaration. The facts stated therein are just a chronology of what happened. What came first was the illegal occupation. After the illegal occupation and the applicant's discovery that the respondents were in illegal occupation, the applicant decided to regularise the occupation rather than evict them from the property. That is how the regularisation comes in. It is not that the respondents were originally given permission. There is no document in their individual names, or any collection of those names, showing that they were given permission to occupy the property. No such document is on record. That ought to resolve the matter.

On the issue of the directorship of the deponent, counsel further argued that the respondents are, in fact, blowing hot and cold. On the one hand, they allege that Thomas Robert Ritchie is not a director because he is a specified person. But they say nothing of what became of his specification. The specification does not result in a conviction to disqualify him from holding

the position of director. On the one hand, they say he is not a director; on the other, in HC 2629/25, they seek to nullify his directorship. They must nail their colours to a mast and tell the court their position.

He further argued that in the judgment before MUCHAWA J in HC 6446/23, the applicants were seeking to enforce the 'offer' which they attached to their opposing papers so that they would then be given individual pieces of land based on that 'offer'. There were originally 300 applicants in that matter, and a joinder of the other 504 applicants was granted. In total, they became 804 applicants in that matter. It is also not correct that some of the present applicants were there. Every one of the present applicants participated in those proceedings. On the basis of *Mhungu v Mtindi* 1986 (2) ZLR 171 (S), upon a consideration of that record in Case No. HC 6446/23 will show that every respondent in this matter was involved in the matter before MUCHAWA J. He contended that the damning findings of fact in that judgment have not been set aside on appeal and remain extant. It does not matter whether respondents call it an offer, permission to reside for free, or a donation; whatever name they ascribe to it. It is the same thing. It is the same set of documents that they are relying on.

Lastly, he submitted that the respondents have not engaged the balancing act. They only speak to their own considerations that they have been there for 12 years, they have effected improvements, but they do not really engage the other considerations, such as the applicant's right to property, the applicant's right to enjoy use of its property to the exclusion of those who do not appear on the title deed. The applicant has been magnanimous as it offered regularisation. The conduct is consistent with the requirements of s 74. It has tried to save the respondents, but they do not want to be saved. The applicant obtained eviction judgments against cooperative societies, and those cooperative societies, together with their members, have since regularised their stay. This is a proper case for summary judgment as the defence is what the courts have characterised as a bogus defence.

WHETHER THIS IS AN APPROPRIATE CASE TO GRANT SUMMARY JUDGMENT

THE APPLICABLE LEGAL PRINCIPLES

The parties correctly restated the applicable legal principles in an application of this nature. They related to the various case law authorities outlining the nature of the remedy and the circumstances when the court may enter summary judgment. It is well established that summary judgment is a drastic remedy. It is only granted where it is clear that the defendant has no *bona fide* defence and has entered an appearance to defend solely for dilatory purposes. In other words, the court can only enter summary judgment when all the proposed defences to the applicant's claim are clearly inarguable both in law and in fact. The law was aptly restated in *Tavenhave & Machingauta Legal Practitioners* v *The Messenger of Court* SC 53/14 at pp 4-5, where ZIYAMBI JA (as she then was) said:

> "Summary judgment is a drastic remedy which will only be granted where it is clear that the defendant has no *bona fide* defence and has entered appearance to defend solely for purposes of delay. Because of the drastic nature of the remedy a court will not grant it if there is any possibility that the defence raised on the papers might succeed. Thus it has been held that a mere possibility of success will suffice to avoid an order for summary judgment and that:
>
> > "all that a defendant has to establish in order to succeed in having an application for summary judgment dismissed is that "there is a mere possibility of his success"; "he has a plausible case"; "there is a triable issue"; or, "there is a reasonable possibility that an injustice may be done if summary judgment is granted". These tests have been laid down in many cases, typical of which in this country are *Davis v Terry* 1957 (4) SA 98 (SR); *Rex v E Rhodian Investments Trust (Pvt) Ltd* 1957 (4) SA 631 (SR); *Kassim Brothers (Pvt) Ltd v Kassim & Anor* 1964 (1) SA 651 (SR); *Shingadia v Shingadia* 1966 (3) SA 24 (SR); *Webb v Shell Zimbabwe (PvT) Ltd* 1982 (1) ZLR 102."
>
> See *Jena v Nechipote* 1986 (1) ZLR 29 (SC). See also *Kingstons Limited v L D Ineson (Pvt) Ltd* 2006 (1) ZLR 451 (S) at 458 F-G."

It is also trite that in order for the respondent to succeed in defeating an application for summary judgment, he or she must disclose facts in his or her opposing affidavit upon which his or her defence is based with sufficient clarity and completeness so as to persuade the court that if proved at the trial, they will constitute a defence to the applicant's claim. See *Mbayiwa* v *Eastern Highlands Motel (Pvt) (Ltd)* SC 139/86. ZIYAMBI JA (as she then was) further made pertinent remarks on what constitutes a *bona fide* defence which can defeat an application of this nature in *Kingstons Ltd* v *L D Ineson (Pvt) Ltd* 2006 (1) ZLR 451 (S) at 458 F-G when she stated that:

> "Not every defence raised by a defendant will succeed in defeating a plaintiff's claim for summary judgment. Thus what the defendant must do is to raise a *bona fide* defence – a 'plausible case' – with 'sufficient clarity and completeness' to enable the court to determine

whether the affidavit discloses a *bona fide* defence. He must allege facts which, if established 'would entitle him to succeed.' See *Jena v Nechipote* 1986 (1) ZLR 29 (S); *Mbayiwa* v *Eastern Highlands Motel (Pvt) Ltd* S-139-86; *Rex* v *Rhodian Investments Trust (Pvt) Ltd* 1957 R&N 723 (SR)."

APPLICATION OF THE LAW TO THE FACTS

VALIDITY OF THE APPLICATION

I must first consider the points raised by the respondents that impugn the validity of the application before me. The law is clear that it is open to a respondent to challenge the validity of an application for summary judgment. See *Bubye Minerals (Pvt) Ltd & Anor* v *Rani International Ltd* SC 60/06 at p 5, where CHEDA JA said:

> In *Mowschenson and Mouchenson v Mercantile Acceptance Corporation of South Africa Ltd* 1958 (3) SA 362 one Henry Barton Myers who was an attorney was authorised to institute action against the defendant and proceed to the final end and determination thereof. His authority to swear to the founding affidavit was challenged as follows:
>
> > "I further deny that the said Myers has any personal knowledge of the facts deposed to and/or verified by him and further state that the defendant company has had no dealings with the said Myers in regard to the transaction on which summons was based, nor was the said Myers party thereto.
> >
> > I submit that such information or knowledge as the said Myers may have can only be hearsay.
> >
> > I further respectfully submit that the said Myers is in no position to form any opinion as to the *bona fides* of the defendant's defence to the action nor as to the purpose for which appearance has been entered to defend the action."
>
> The Court stated that:
>
> > "The verifying affidavit goes to the question of the court's jurisdiction. **If the affidavit does not comply with the requirement of the Rules** (which in England is substantially the same as ours) **the court would have no jurisdiction to grant summary judgment**. **If material allegations in the affidavit are hearsay, the affidavit is defective and the application is bad**."
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> **The court also stated that it was open to a respondent in summary judgment proceedings to attack the validity of the application on any aspect, including the admissibility of evidence tendered in the verifying affidavit**…." (*my emphasis*)

The grounds for challenging the validity of the application were that Mr Ritchie is disqualified from serving as a director of the applicant and that his affidavit is based on hearsay evidence. As stated above, the validity of these proceedings maybe challenged by the respondent. While such grounds may not be defences to the applicant's claim itself, they go to the question of the jurisdiction of the court. The absence of a valid founding affidavit would render the

application fatally defective, and, therefore, the court would have no jurisdiction to grant summary judgment.

The first ground of the challenge to the validity of the application is that Mr Ritchie was a specified person at one point, as published in the Government Gazette on 30 July 2013, and that, if he was convicted, he would be disqualified from being a director of a company. This position is pleaded in para 3.2 of the opposing affidavit at p 7 and 77 of the respondents' papers as follows:

> "It is therefore important to know at what point Thomas Robert Ritchie became director, **if at all**, considering that he was once published in the Government Gazette of 30 July 2013 as a specified person to be investigated for corruption. **If the outcome of these investigations led to his conviction**, **then by operation of law, Thomas Robert Rithcie cannot be a director**. I attach hereto the notice in the Government Gazette …" (*my emphasis*)

It is clear from the respondents' papers that they are unsure whether Mr Ritchie was convicted and, therefore, disqualified from being appointed a director under the law. The provisions of s 200(1)(d) of the Companies and Other Business Entities Act [*Chapter 24:31*] (*"COBE Act"*) (which was s 173(1)(d) of the repealed Companies Act [*Chapter 24:03*]) read:

> "**173 Disqualification for appointment as director**
> (1) Any of the following persons shall be disqualified from being appointed a director of a company—
> …
> (d) save with the leave of the court, any person who has at any time been convicted, whether in Zimbabwe or elsewhere, of theft, fraud, forgery or uttering a forged document or perjury and has been sentenced therefor to serve a term of imprisonment without the option of a fine or to a fine exceeding level five …"

The respondents relate only to a 2013 notice of specification, which concerned an investigation. An investigation is merely that and does not translate to a conviction. The best evidence of a criminal conviction is a court extract thereof, and the conviction must also relate to the specified offences. They are not sure what became of the investigations or whether he was eventually convicted of the offence for which he was under investigation. The applicant had attached a board resolution to the founding affidavit confirming that the deponent was duly authorised to act for the applicant, and the deponent also stated that he is a director. It was, therefore, incumbent upon the respondents to prove that he was convicted of any of the offences

specified under s 200(1)(d) of the COBE ACT and is disqualified from being appointed as a director. He who alleges must prove.

In para 31 of the respondents' supplementary heads of argument, there is an attempt, for the first time, to make a factual averment that the deponent could not be found because he was a fugitive from justice who had fled the country. This factual averment, besides being a bald and unsubstantiated allegation, was also improperly made in the heads of argument. There is no evidence that he was convicted or disqualified from being appointed as a director at the time he deposed to the founding affidavit on 9 April 2025 or that he cannot validly act for the applicant. In the absence of evidence, the court cannot act on mere conjecture. Bald averments are insufficient to establish a party's announced or purported position. It is also settled that he who alleges must prove. See *Chinyenze* v *Law Society of Zimbabwe* SC 08/22 at p 15, para 39, where MAVANGIRA JA held that:

> "**It is trite that courts**, and indeed the Tribunal, **decide matters on the basis of evidence that is placed before them and not on the mere say so of a litigant**. **Every averment made must be substantiated by evidence in order for the court to place any weight on it**. Bald assertions will not assist a litigant who desires to establish his case." (*my emphasis*)

Additionally, the respondents also admitted that they could not locate the company file and had nothing to show that Mr Ritchie is not a director of the applicant. They claimed in para 3.7 of the opposing affidavits that when they searched the company's file at the Registrar of Companies, it could not be located. An affidavit from one Malcom Murambiwa, the principal examiner in the Companies Registry, at p 88 of their papers, further confirmed that, when that affidavit was commissioned on 16 April 2025, the office file had not been located. Clearly, therefore, they have nothing to establish their allegation that the deponent Mr Ritchie is not a director of the applicant and, therefore, cannot act for the company.

In any case, without challenging the board resolution itself, the allegation that he has no authority or capacity to act is legally untenable. A company is entitled to authorise any person to represent it in legal proceedings. Mr Ritchie's authority was well supported by the board resolution attached to the founding affidavit, and it was not challenged by the respondents. That board resolution shows that the applicant company is aware of these proceedings and has authorised them, and also that it has duly authorised him to act on its behalf. Thus, in *Valentine*

& Anor v *Blooming Lily Investments (Pvt) Ltd & Ors* SC 42/23 at p 11, para(s) 30-31, it was held that:

> "30. Therefore, a company resolution is required for two reasons, first, to prove that the entity is aware of the legal proceedings and has authorised them and, secondly, that the person representing it has been clothed with the requisite authority to represent it in the proceedings.
>
> 31. In *casu,* the resolution presented on behalf of the first respondent satisfied both requirements of a valid resolution. The resolution in question proves that the first respondent was aware of the legal proceedings and it authorized Tapiwa Gurupira to represent it. It is also common cause that the first appellant and Tapiwa Gurupira have been involved in various litigation relating to these mining claims and he has always represented the first respondent. I see no basis why his authority to represent the first respondent can be validly challenged at this stage."

There is nothing before me to sustain the challenge to Mr Ritchie's capacity and authority to represent the applicant company in these proceedings.

The other ground upon which the validity of the proceedings was impugned was raised for the first time in the respondents' supplementary heads of argument. It was argued that Mr Ritchie was not a competent person to depose to the affidavit as he could not swear positively to the facts in the founding affidavit. The argument is, therefore, that the founding affidavit is based on hearsay evidence and, accordingly, invalid. It is trite that a founding affidavit not based on personal knowledge, but on hearsay, is invalid, and that renders the application invalid. See *Bubye Minerals (Pvt) Ltd* (*supra*), where the Supreme Court had this to say:

> "…If Myers, who was an attorney for the applicant, and who had been properly instructed, was not within the category of persons who could swear to the founding affidavit and verify the facts, then Kantsouris couldn't be either. The facts known to him were not based on personal knowledge but from records and correspondence of the company.
> In *Newman Chiadzwa v Herbert Paulerer* SC 116/91, the Court held that a relative of the applicant, who was not present at the negotiations of the sale of property but gained knowledge of facts from an agreement of sale and letters written by the parties and what he was told by the plaintiff, was not shown to be a person who had personal knowledge of the facts. It was pointed out also that a useful test would be to ask whether the deponent to the affidavit would be a competent *viva voce* witness to the facts were he to be called to testify.
> … Kantsouris is an employee of the applicant. It was not disputed that at the time of the transactions he was not in the employ of the applicant. It was submitted on appeal that he had access to the records of the company and also consulted the company's employees. Clearly what knowledge he got was obtained as a result was hearsay.
> Rule 67 of the Rules says:
>
> > "No evidence may be adduced by the plaintiff otherwise than by the affidavit a copy of which was delivered with the notice nor may either party cross-examine any person who gives evidence *viva voce* or by affidavit."

> **This clearly shows that the evidence on the affidavit of the applicant should be based on personal knowledge and not on hearsay.**
> It follows that the affidavit of Kantsouris was not based on personal knowledge but on hearsay.
> **The effect is that there was no proper affidavit founding the application and therefore no valid application before the court**." (*my emphasis*)

On the hearsay argument, in my view, Mr *Zhuwarara* was not arguing the respondents' case as set out in their pleadings. It is trite that heads of argument are not pleadings but contain the opinion of counsel on the applicable law. In *Van Brooker* v *Mudhanda & Another And Pierce* v *Mudhanda & Another* SC 5/20 at p 17, GOWORA JA (as she then was) was clear on the law when she held that:

> "The purpose of heads of argument is to expound on the law applicable to the facts placed before the court, and one cannot plead through written submissions. It is also trite that one cannot adduce evidence through heads of argument, but one may do so either in affidavits or *viva voce* evidence."

Accordingly, a case cannot be made in the heads of argument. The respondents, in their opposing affidavit, merely challenged the deponent's status as a director on the basis of the allegation that he was disqualified after his alleged conviction. They did not raise any issue of hearsay evidence or that he had no personal knowledge of any facts he had averred in the founding affidavit. They did not plead any facts that the deponent could not competently swear to. In other words, the issue that his affidavit was based on hearsay and not personal knowledge was not raised. No reference was made to any specific part of his affidavit where it was alleged that he was giving hearsay evidence. It would be incompetent to plead such facts in the heads of argument. The law is clear that, as with a founding affidavit, the respondent's case is made in the opposing affidavit. See *Jonkershoek Trading (Pvt) Ltd* v *Mpofu* HB 17/23, where DUBE-BANDA said:

> "It is a trite principle of our law that a litigant must lay out or plead a basis for the opposition in the opposing affidavit. As the application stands or falls on the founding affidavit and the facts alleged in it, the opposition stands or falls on the opposing affidavit and the facts alleged in it. See: *Chiangwa And 7 Others v AFM in Zimbabwe And 7 Others* SC 67 of 2021; *Austerlands (Pvt) Ltd & Ors v The Sheriff of Zimbabwe & Ors* 2006 (1) ZLR 372 (S)."

The point of law in *casu* is one where facts ought to have been pleaded to be sustainable. The allegation in para 32 of the respondent's supplementary heads of argument that the knowledge Mr Ritchie possessed constitutes inadmissible hearsay evidence as he had no personal knowledge of what transpired after 2013 was never pleaded in the opposing affidavits, being the pleadings. It could not competently be raised in the heads of argument. The argument was,

therefore, not properly placed before me. The issue that the founding affidavit is based on hearsay evidence does not arise from the pleadings.

I find no valid basis upon which the validity of this application can be seriously challenged. I am satisfied that this application is properly before the court.

THE APPLICANT'S CAUSE OF ACTION

It was contended by Mr *Zhuwarara* that the applicant's cause of action arose from the dispute over the fair intrinsic value payable. He submitted that this is apparent from para(s) (5) and (8) of the declaration. Mr *Banda*, on the other hand, contended that the cause of action arose from the unlawful occupation of the applicant's property without its consent. He argued that the mention of regularisation was simply part of a chronology of events, as the applicant before eviction sought to alleviate the situation by offering to have the respondents regularise their stay on its property and pay the value thereof. The term 'a cause of action' was defined in *Abrahams & Sons v SA Railways and Harbours* 1933 CPD 626 at 637, where WATERMEYER J stated:

> "The proper meaning of the expression 'cause of action' is the entire set of facts which gives rise to an enforceable claim and includes every act which is material to be proved to entitle a plaintiff to succeed in his claim. It includes all that a plaintiff must set out in his declaration in order to disclose a cause of action."

See also *Peebles* v *Dairiboard Zimbabwe (Pvt) Ltd* 1999 (1) ZLR 41.

I agree with Mr *Banda* that Mr *Zhuwarara* mischaracterised the applicant's cause of action as pleaded in the summons and declaration. When one considers the facts that the plaintiff pleaded and which it must prove to support its right to judgment in respect of the claim for eviction of the respondents, the cause of action is clearly anchored on the remedy of *rei vindicatio*. The applicant pleaded that it is the owner of the property, that the respondents unlawfully took possession of it without its consent, and that it seeks to vindicate its property. See para(s) (3), (4), (5) and (9) of the plaintiff's declaration. The applicant's case is very clear that the facts pleaded seek to establish a vindicatory claim. While there is reference to efforts to engage the respondents to regularise their occupation, those averments do not, *per se*, turn the cause of action into one for payment of the land's intrinsic value. The applicant clearly seeks to recover possession of its property on the grounds that the respondents are occupying it without

its consent as the owner thereof. To that extent, the applicable law relates to the remedy of *rei vindicatio*.

The law is trite that an owner is entitled to recover his or her property from anyone in possession of it without his or her consent. The legal principles were restated in *Eastlea Hospital (Pvt) Ltd* v *Ndoro & Ors* SC 116/23 at p 7, where MWAYERA JA stated:

> "What constitutes *rei vindicatio* has been ably set out in a number of cases in this Court. The case of *Indium Investments (Pvt) Ltd v Kingshaven (Pvt) Ltd & Ors* SC 40/15 at p 10 is apposite. This Court illustrated what constitutes the principle of *rei vindicatio* as follows:
>
> > "The nub of the *actio rei vindicatio* is that an owner is entitled to reclaim possession of his property from whosoever is in possession thereof. As was stated in *Chetty* v *Naidoo* 1974 (3) SA 3 at p 13:
> >
> > > 'It may be difficult to define *dominium* comprehensively (cf. *Johannesburg Municipal Council* v *Raid Townships Registrar & Ors* 1910 TS 1314 at 1319), but there can be little doubt that one of its incidents is the right to exclusive possession of the res, with the necessary corollary that the owner may claim his property whenever found, from whomsoever holding it. It is inherent in the nature of ownership that possession of the *res* should normally be with the owner, and it follows that no other person may withhold it from the owner unless he is vested with some enforceable rights against the owner (e.g. a right of retention or a contractual right)'.
>
> This Court set forth the remedy of *rei vindicatio* in *Chenga* v *Chikadaya & Ors* SC 7/13 at p.7 when it stated the following:
>
> > "The *rei vindicatio* is a common law remedy that is available to the owner of property for its recovery from the possession of any other person. **In such an action there are two essential elements of the remedy that require to be proved. These are firstly, proof of ownership and secondly, possession of property by another person. Once the two requirements are met, the onus shifts to the respondent to justify his occupation (**my emphasis).
> >
> > See also *Stanbic Finance Zimbabwe Ltd* v *Chivhungwa* 1999 (1) ZLR 262 (H) in which the principle of *rei vindicatio* was clearly propagated, as a principle based on the fact that an owner cannot be deprived of his property against his will and that he is entitled to recover it from any person who retains possession of it without his consent."

See also *January* v *Muferefu* (*supra*).

The applicant must accordingly establish two requirements for *rei vindicatio*: firstly, that it must prove ownership and, secondly, that the property is in possession of the respondents. Once these are established, the *onus* shifts to the respondents to justify their occupation or prove their right of retention. In *casu*, the applicant produced a copy of the title deed registered in its favour, being the Certificate of Consolidated Title No. 1939/1990 dated 27 March 1990 at pp 15-18 of the main record. There is no doubt that it is the registered owner of the entire piece of land

in question. I will consider the challenge to the validity of that title on the basis of the alleged 'offer' of the land made to ZANU-PF Mukuvisi-Tashinga District later. It is settled law that a title deed is *prima facie* evidence of ownership of immovable property. This places the *onus* to rebut that evidence on the respondents. Thus, in *CBZ Bank Ltd v Moyo* SC 17/18 at pp 5-7, UCHENA JA aptly stated as follows:

> "**Ownership of immovable property is proved by producing a deed of transfer**. …
> …
> I must state that a deed of transfer or registration of cession is not conclusive proof of ownership or the rights of a cessionary. See the cases of *Young v Van Rensburg* 1991 (2) ZLR 149 (S) at 156 D-G and *Kassim v Kassim* 1989 (3) ZLR 234 (H) at 237 B-D. **It simply raises a presumption in favour of the holder of the title deed or the rights of a cessionary until the claimant proves on a balance of probabilities that he innocently bought the property or cessionary rights from the owner of the property or cedent.** See the case of *Cunning v Cunning* 1984 (4) SA 585 (T). In any event, the registration of transfer in the Deeds Registry or registration of cession at the offices of a local authority or Deeds Registry does not always reflect the true state of affairs. **A title deed or registered cession is therefore *prima facie* proof of ownership or cessionary rights which can be successfully challenged.** When the validity of title or registered cession is challenged, it is the duty of the court to determine its validity in order to make a ruling which is just and equitable." (*my emphasis*)

In relation to the second requirement of a vindicatory action, it is common cause that the respondents are in possession of the property. The applicant alleged that their possession is without its consent and, therefore, unlawful. I must turn to consider the respondents' defence to the *rei vindicatio* and determine whether it is *bona fide* or plausible.

WHETHER THE DEFENCE IS *BONA FIDE*

There are recognised defences to the applicant's claim of *rei vindicatio*. In the *January* case (*supra*) at p 7, UCHENA JA had this to say:

> "There are basically four main defences to a claim of *rei vindicatio* , which are:
>
> (i) that the applicant is not the owner of the property in question.
>
> (ii) that the property in question no longer exists and can no longer be identified.
>
> (iii) that the respondent's possession of such property is lawful.
>
> (iv) that the respondent is no longer in physical control of the property – See the cases of *Chetty v Naidoo (supra) and Residents of Joe Slovo Community* v *Thabelisha Homes* 2010 (3) SA 454 (CC)."

As set out in *Kingstons Ltd* v *L D Ineson (Pvt) Ltd* (*supra*), the opposing affidavit must disclose a *bona fide* defence with sufficient clarity and completeness. In other words, the

respondents must allege facts which, if established, would entitle them to succeed. Their case must be arguable or triable. The respondents raised a defence challenging the applicant's title and alleging that their possession of the property is lawful. The crux of their defence is that they were allocated the pieces of land by ZANU-PF Mukuvisi-Tashinga District, which had been offered the undeveloped piece of land by the applicant on 26 November 2012, and that the offer was accepted. They rely on the letter dated 27 November 2012 from the applicant's erstwhile legal practitioners, F. G. Gijima & Associates. The said letter does not specifically mention the respondents. It is addressed to the Chairman ZANU-PF Harare Province. It is titled "OFFER OF UNDEVELOPED LAND – MSASA PARK (PVT) LTD" and enclosed is the document at p 90, which reads:

> "TO: ZANU (PF) Harare Province
> FROM: MSASA PARK (PVT) LTD
> DATE: 26 NOVEMBER 2012
>
> ---
>
> I WISH TO ADVISE YOU AS FOLLOWS:
>
> 1. THAT THE COMPANY GENERALLY AGREES **TO OFFER TO ZANU (PF) MUKUVISI-TASHINGA DISTRICT** THE UNDEVELOPED STAND SITUATE IN THE PERIPHERAL AREA OF MSASA PARK **ON TERMS AND CONDITIONS TO BE AGREED**.
> 2. THAT THE OFFER OF THE SAID UNDEVELOPED STAND IS SUBJECT TO A CLEAR SURVEY OF THE STAND AS APPEARS ON THE GENERAL DIAGRAM.
>
> CHARLES MIKE
>
> CO-DIRECTOR" (*my emphasis*)

The respondents also rely on the affidavit from one Charles Mike, who alleged that he is a director of the applicant company and sought to confirm the offer to ZANU-PF Mukuvisi-Tashinga District and in para 6 thereof at p 92 of the respondents' papers stated that this was "an unconditional donation" made by the company and accepted by ZANU-PF Harare Province. The respondents alleged that they are in lawful possession of the land, having been granted the rights thereto by ZANU-PF Mukuvisi-Tashinga District, which acquired title upon acceptance of the land 'offer'. I must state that all the papers relied upon by the respondents were placed before this court in the matter before MUCHAWA J, who also made factual findings in relation to the same papers. Mr *Zhuwarara* was correct to say that not all the respondents before me were

parties in that matter. A perusal of the record under Case No. HCH 6446/23 shows that the 1st, 2nd, 4th, 6th, 7th, 12th, 16th,19th, 20th, 23rd, 25th, 29th, 31st, 34th, 37th, 39th, 41st, 42nd, 43rd, 44th, 47th, 49th and 50th respondents were applicants in that matter together with the others not before me. They sought a declaratory order and consequential relief, including an order compelling the applicant to effect transfer of the stands to each of them. The relief sought read as follows:

> "1. The application for a declaratory order be and is hereby granted.
> 2. It is declared that applicants' right of occupation and ownership of pieces of land allocated to each of them on stand 560 Chadcombe Township, measuring 279 8393 Hectares, held under Certificate of Consolidated Title No 19391/1990, dated 30th March 1990, arise from the donation of the said stand 560 by the respondent to ZANU-PF Mukuvisi Tashinga District in 2012.
> 3. It is declared that other than each applicant meeting its share of the subdivision costs incurred by the respondent on stand 560, together with transfer costs, any arrear utility bills thereat and conveyancing fees, applicants have no obligation to pay market purchase prices to the respondent for respondent to effect transfer into their individual names.
> 4. Subject to each applicant complying with their obligations as set out in para 3 above the respondent be and is hereby directed to take all necessary steps to immediately effect transfer of individual stands allocated to each of the applicants.
> 5. In the event that the respondent fails to comply with para 4 above the Sheriff of the High Court be and is hereby directed and authorized to sign all papers to effect transfer of the said stands into applicant's names.
> 6. The respondent shall bear costs of suit."

In that application, the respondents I have listed above averred that the applicant herein, which is the owner of the land, donated the land to ZANU-PF Mukuvisi-Tashinga District through one Charles Mike, who was, at the material time, one of its directors. They further alleged that the donation was accepted on 27 November 2012, and logistics for the survey of the land were initiated. Thereafter, they were allocated their pieces of the land in question by ZANU-PF Mukuvisi-Tashinga District. Points *in limine* that they lacked *locus standi* and that their claim had prescribed were raised. The court *per* MUCHAWA J upheld the points in *limine* and dismissed the application with costs. See *Paina Machidza* v *Msasa Park (Pvt) Ltd* HH 286/24. Those who were parties to that judgment are bound by it. At pp 7-8 of the judgment, MUCHAWA J made the following damning findings concerning the rights of the respondents to the land in question:

> "Do the applicants who are not the direct beneficiaries of the donation, who have left out the party, ZANU (PF), the alleged donee, really have a direct interest in this matter? **They have not detailed which piece of land each of them got from the respondent**. Their individual claims are buried within the alleged donation to ZANU (PF) which is not before the court. In any event,

> **the Provincial Chairman of ZANU(PF), the alleged donee, on p 90 to 91 of record dissociated the party from legal proceedings that had been instituted in its name based on the alleged donation of 2012**. He confirms that the party is a juristic person capable of suing and being sued. Tellingly, he says,
>
> > "**ZANU PF Harare Province is involved in positive discussions with Msasa Park (Pvt) Ltd to ensure regularization of the illegal settlement** established by heartless illegal land barons. No evictions have taken place since 2023 despite the land owner having the right to do so."
>
> It is my considered view that the applicants have no direct and substantial interest to launch this application which they are basing on a donation to a party which is not before the court. **In the face of the eviction orders granted in favour of the respondent in 2013, the applicants are in illegal occupation of the respondent's land**. They clearly do not have a direct and substantial interest in this matter. As started in *United Watch & Diamond Co (Pty) & ORS v Disa Hotels & Anor Supra*, the applicants have not met the requirement of a legal interest in the subject matter of the action which could be prejudicially affected by the judgment of court." (*my emphasis*)

The court further found that their claims to assert any rights to title based on the alleged 2012 donation had prescribed as well.

It is common cause that the said respondents' attempts to overturn this judgment were unsuccessful in the Supreme Court. In its findings, the court not only upheld the points *in limine* but also found them to be in illegal occupation of the applicant's land. See p 8 of the judgment. That was a bold and damning position taken by the court, striking at the heart of these respondents' claim to any right or interest in the land in question. There cannot be any arguable defence in the circumstances, nor any triable issues for the court to reconsider. The same issue of the respondents' rights or interests in the land in question was clearly determined, and that decision is final. Their claims to assert any rights or title in this property were dismissed. They cannot wake up and seek to reclaim the same rights to possess the land or allege that their possession is lawful.

In my view, the court's findings in that case would equally affect even those of the respondents who were not parties, as they related to the status of the property in question. The court considered the same documents relied upon by the other respondents, who were not parties, and made findings of fact on the futility of any claim to rights or title in the property based on the alleged donation. The same documents cannot now turn to create any valid rights for them before me.

While in the previous matter the respondents before the court then argued that there was a donation of the property, leading to their being allocated the land, in *casu* they have performed a volte-face. They now claim that their position that it was a donation was flawed. They now seek to advance an argument that there was an 'offer' of the land without any consideration whatsoever. This is also the argument of those who were also not before MUCHAWA J. This is captured in para(s) 8 of the opposing affidavits at pp 9 and 79 of their opposing affidavits, which state as follows:

> "AD PARAGRAPH 12-22
>
> 8. The contents of these paragraphs are disputed. It should be noted that **the respondents in their plea did not refer to any donation of the land but rather an offer made to ZANU PF by the applicant**. An offer and a donation are totally different processes as a donation requires much more for its validity.
>
> 8.1 The **draft order in the said matter under HH 286-24 referred to a donation which is not what transpired and for a donation of an immovable property to be valid it would require a deed of donation which was never prepared**. Hence **the plea raised by the Respondents in this matter is different from the flawed position adopted by the respondents** under HH 286-24." (*my emphasis*)

The purported attempt to shift from what was originally alleged to be a donation, after realising that there was no valid donation, to alleging an 'offer' is a classic display of *mala fides*. In legal proceedings, one cannot continue to shift positions. The court, before MUCHAWA J, has already considered the position of all those before her based on the same documents they have placed before me. They cannot expect a different outcome. Simply renaming a goat and labelling it a dog does not change the fact that it is still a goat. Whatever name the respondents ascribe to the communication at p 90 of their papers, either as a 'donation' or an 'offer', does not assist them. They all have nothing in their individual names from the applicant granting them rights in the land or permitting them to occupy the land. Some of them were also held to be in illegal occupation in the judgment under HCH 6446/23.

Further, by taking the position that there was no donation but what is said to be an 'offer', it means the respondents cannot seek to rely on the same affidavit from one Charles Mike, which in para 6 at p 92 of their papers still stands claiming it was an "unconditional donation". They have accepted that there was no valid donation and that admission resolves the matter. Mr *Zhuwarara* also sought to claim that the said Mr Mike did not appreciate what a donation is, as

he lacked legal training. However, his argument was hollow and untenable as there was no evidence that he lacked such appreciation.

In any case, a valid offer can only be made to and accepted by an existing legal entity. It is trite that only legal persons can acquire rights and obligations which can be enforceable in a court of law. The law on legal personality was fully explained by L. Madhuku, *An Introduction to Zimbabwean Law*, 2010, at p 11, where he stated as follows:

> "**Legal rights are enjoyed only by legal 'persons'.** A human being is a person at law (therefore, a legal person). However, a human being is not the only person recognized by law. The law endows other entities with the capacity to acquire rights and incur obligations. **A legal person is also defined as 'somebody who, or something which, can have legal rights and can also be bound by legal rights, i.e., be subject to legal duties.'**
>
> Other entities endowed with legal personality are generally referred to as 'juristic' or 'artificial persons'. A company is the most notable example of a juristic person; even non-lawyers know that a company is a separate legal person from its shareholders and officials. It is appropriate to close this section on legal personality by referring to two brief passages from two leading South African legal textbooks.
>
> Hahlo and Kahn say:
>
> > There are two classes of persons in law: (i) 'natural persons', i.e., individual human beings who in modern law enjoy legal personality as a matter of course, and (ii) '**juristic' or 'artificial' persons, i.e., associations and bodies other than individual human beings upon which the law has seen fit to bestow the capacity for rights and duties**." (*my emphasis*)

The allegation in *casu* was that the purported offer of the land was made to "ZANU-PF Mukuvisi-Tashinga District". This is also apparent from the purported offer letter at p 90 of the respondents' papers directed to ZANU-PF Harare Province. As noted by MUCHAWA J at p 7 of her judgment, ZANU-PF as a party distanced itself from any proceedings that have been instituted to assert the alleged donation. It would surely have been the party as a common law *universitas* to have been granted a valid offer and which it could also validly accept. There is no dispute that "ZANU-PF Mukuvisi-Tashinga District" is not a legal person capable of owning or acquiring rights in immovable property. Mr *Zhuwarara* conceded on this position. It is a non-existent legal entity. The purported offer to a non-existent legal entity was void *ab initio*. Being a nullity, it cannot beget any valid allocation of the land nor create any rights in respect of the land. Nothing valid can arise from it. It lacks legal existence. The effect of a legal nullity is well-

settled. See *MacFoy v United Africa Co Ltd* [1961] 3 All ER 1169 (PC) where LORD DENNING famously held as follows:

> "If an act is void, then it is in law a nullity. It is not only bad, but incurably bad. There is no need for the court to set it aside. It is automatically null and void without more ado... And every proceeding which is founded on it is also bad and incurably bad. You cannot put something on it and expect it to stay there. It will collapse."

See also *Aponte v Luigi & C. S. P. A & Ors* SC 89/25 at pp 12-13.

In these circumstances, I agree that the respondents' defence can be classified as bogus. It is completely unarguable. Clearly, the respondents who have failed to challenge the validity of the applicant's title and to make any material averments that can establish their right of retention in the property in question have no *bona fide* defence. The applicant's case for *rei vindicatio* stands unchallenged on the material averments regarding its requirements and the evidence before me, namely, that the applicant is the owner of the property and that the respondents occupy it without the applicant's consent.

The respondents also conceded that they have no lawful right to possess the property. In para(s) 3.5-3.6 of their opposing papers at pp 7 and 77, they pleaded as follows:

> "3.5 After these fraudulent attempts to collect purchase prices from the respondents in respect of the land in issue, the applicant's legal practitioners then engaged the respondents in what it called a regularization process. **The respondents were asked to enter into new agreements of sale with applicant and pay the purchase prices** of the stands individually allocated to them.
>
> 3.6 **In much as this [exercise] is welcome to the respondents**, they remain with scars from past experiences and went on to and requested to know the current directors of the applicant company and also a resolution from the directors authorizing the applicant's practitioners and other **agents to collect purchase prices to avoid similar past mistakes.** The respondents even wrote to the applicant's legal practitioners requesting for this information but the applicant's legal practitioners were not forthcoming with this information until now. I attach hereto a letter from Kuchidza Law Chambers our previous legal practitioners to Bruce Tokwe Commercial Law Chambers marked hereto as Annexure "AO3"." (*my emphasis*)

It is clear from the above averments that the respondents accepted that the regularisation exercise was welcome. That regularisation was clearly an attempt by the applicant to grant the respondents, *post facto*, permission for their illegal occupation, allowing them to continue staying on its property by offering to sell the property to them. They stated that they could not trust the company representatives, given the prior scars of being duped. This is why they

demanded details of the directorship of the applicant, including minutes of the appointment of the directors, but they alleged that the information was not furnished. See para 3.9 of their opposing papers. To that extent, they cannot argue that the applicant is not the owner of the land or that it had already granted them authority to possess the land. If their argument was that the land was 'offered' and accepted free of charge by ZANU-PF Mukuvisi-Tashinga District and allocated to them, why would they believe a regularisation exercise was necessary? It defies logic to claim that someone has no rights over the land and still accept that the same person can give you a special dispensation to stay on the same piece of land.

Mr *Zhuwarara* further exposed the futility of their defence by saying that their dispute was a disagreement over the land's intrinsic value. While he alleged permission from the applicant to settle there, which clearly was not there, it showed that the respondents accepted that the applicant owned the land and that only the applicant could regularise their possession thereof. They cannot, therefore, adopt a position that the applicant does not own the land or that they have its permission to occupy it. Nothing was before the court to show any such permission to stay on the land. The respondents cannot have it both ways. It is a principle of the law that a litigant cannot approbate and reprobate. Doing so is a classic display of *mala fides* and unacceptable. Thus, in *The Trustees for the Time Being of Cornerstone Trust & Ors* v *NMB Bank Ltd* SC 97/21 at p 8, it was held that:

> "The position was well articulated in the case of *S v Marutsi* 1990 (2) ZLR 370 at page 374B wherein it was stated that:
>
> > "It is trite that a litigant cannot be allowed to approbate and reprobate a step taken in the proceedings. He can only do one or the other, not both."
>
> Moreover, in the case of *Alliance Insurance v Imperial Plastics (Pvt) Ltd. & Another* SC 30/2017, the court took the view that such conduct amounts to a classic display of *mala fides*."

The respondents cannot argue that they were granted permission by the applicant to occupy the land, as Mr *Zhuwarara* sought to argue at the hearing, while at the same time alleging that they were allocated the stands by ZANU-(PF) Mukuvisi-Tashinga District, and claim that the applicant was divested of its title in the land. It is either that they derive their rights from the said "District", or that they allege that they were permitted by the applicant to occupy the property. It cannot be argued that the applicant lost its title to the property by the alleged offer and, at the same time, that the same applicant granted them permission to occupy the stands.

There was an attempt to relate to the doctrine of estoppel in the heads of argument. In *Econet Wireless (Pvt)* v *ZIMRA* SC 17/2019, the Supreme Court remarked that:

> "For the appellant to succeed in proving estoppel, it has to prove, and the authority for this proposition is the case of Andrew *Phillips (Pvt)* Ltd v *GDR Pneumatics (Pvt) Ltd* 1986 (2) ZLR 65(SC) 67, that the respondents or their officers made a representation in word or deed which might have reasonably misled the appellant; that the appellant was misled and that the representation induced the appellant to act as it did."

As I have already alluded to, no case is made in the heads of argument. In their plea, the respondents did not allege any representation by the applicant that they acted upon, or that they were misled and induced to occupy the pieces of land in question. To that extent, the doctrine cannot simply be applied in a vacuum. It must be related to the facts pleaded. Such a case was not the respondents'. Counsel was, therefore, arguing his own case. At the hearing, Mr *Zhuwarara* did not specifically relate to this doctrine. I am not satisfied that there are facts which could establish this defence on trial.

In my view, there should be no debate that the respondents have no defence at all, which can be established at trial. The material facts pleaded also, in the face of the judgment before MUCHAWA J, cannot, by any standard, be taken to be arguable or to raise triable issues. While the applicant established the two requirements of *rei vindicatio* as it is clear that it is the owner of the land and that the respondents are in possession thereof without its consent, the respondents, on the other hand, completely failed to show that they have any valid defence to the claim or to justify their occupation of the applicant's property.

This takes me to the belated constitutional argument adopted by the respondents in the supplementary heads of argument.

THE IMPACT OF s 74 OF THE CONSTITUTION ON THE SUMMARY JUDGMENT

It was argued that the considerations of s 74 of the Constitution of Zimbabwe militate against granting summary judgment in this case. The said section read as follows:

> "**74 Freedom from arbitrary eviction**
>
> No person may be evicted from their home, or have their home demolished, without an order of court made after considering all the relevant circumstances."

There is no doubt that the provision protects persons from arbitrary evictions from their homes. Mr *Zhuwarara* referred me to the case of *Zuze v The Trustees Mlambo & Anor* (*supra*), in which the Supreme Court addressed this provision. In that case, the High Court had granted a default judgment ordering the eviction of the second respondent and all other occupiers of the property in that matter. The appellant had made an application for rescission of the default judgment in terms of the old r 449, contending that it was erroneously sought or granted. The appellant was an interested party but was not cited in the proceedings in which the default judgment was granted. The appellant argued that the court was required by s 74 of the Constitution to consider "all the relevant circumstances" before granting the eviction order. It was also his argument that the provision provides that a person cannot be evicted from his home without having been heard and the court having considered all the relevant circumstances. At pp 13-14, PATEL JA (as he then was) explained the legal position as follows:

> "Mr *Madhuku* retorts that s 74 does not allow any consideration of the facts without the person affected having been heard. **A consideration of all the relevant circumstances necessarily requires that the home owner must first be heard before any eviction order can be granted.**
>
> Both at international law and under national constitutional law, fundamental rights are categorised as either being substantive or procedural in nature or as an amalgam of these two categories. **The right guaranteed by s 74 of the Constitution has the features of a substantive socio-economic right, but is couched as a procedural right with socio-economic implications.** In evaluating the equivalent of s 74 in the South African Constitution, in the case of *Port Elizabeth Municipality* v *Various Occupiers* 2005 (1) SA 21 (CC) at para. 32, it was observed that:
>
> > "... the Constitution imposes new obligations on the courts concerning rights relating to property not previously recognised by the common law. It counterposes to the normal rights of possession, use and occupation, a new and equally relevant right not arbitrarily to be deprived of a home. The expectations that normally go with title could clash head on with the genuine despair of people in dire need of accommodation."
> >
> > Before addressing the elements of this new right, it is pertinent to consider what is meant by the word "home" as used in s 74. According to the *Concise Oxford Dictionary of English* (7th ed.), cited with approval in *City of Harare* v *Mukunguretsi & Ors* SC 46-18, at p. 6, a "home" is defined as a "dwelling place; fixed residence of a family or household; dwelling-house". **The word embraces both permanent and temporary places of abode, including rented apartments, housing provided to employees, traditional dwellings as well as shacks and informal dwellings**. See *Ross* v *South Peninsula Municipality* 2001 (1) SA 589 (C). The term has also been defined to mean a shelter against the elements providing some of the comforts of life with some degree of permanence. See the *Port Elizabeth Municipality* case (*supra*) at 228. *In casu*, there can be no doubt that the accommodation used by the appellant, where he had dwelt for almost

> nine years, falls within the definition of a "home" for the purposes of s 74 of the Constitution." (*my emphasis*)

At p 14, the Supreme Court went on to state that:

> "The essential elements of the protection afforded by s 74 are twofold. **The first is that no person may be evicted from his home or have his home demolished "without an order of court".** This is a basic procedural requirement to ensure that the law is followed in conformity with due process. This was underscored in the *City of Harare* case (*supra*), at paras. 12 & 15, as a prerequisite to the lawful demolition of the respondents' homes. *In casu*, there was an order of court granted in Case No. HC 9554-16 and, therefore, it cannot be disputed that the appellant was evicted pursuant to an order of court.
>
> **The second element relates to the possible arbitrariness of an eviction and necessitates that the court seized with the matter must consider "all the relevant circumstances" before it grants an order of eviction or demolition.** With respect to the South African equivalent of our s 74, *i.e.* s 26, the provision has been construed to confer not only a procedural right but also a substantive benefit to include the issue of whether or not the prospective evictee has access to alternative housing." (*my emphasis*)

It is apparent from the principles set out in the *Zuze* case that an affected party must be heard before being evicted from his or her home. In that hearing, the court is enjoined to consider all the relevant circumstances. It is incorrect, in my view, for Mr *Zhuwarara* to purport to expand the decision to mean that summary judgment can never be granted where eviction is sought against a person from a place he or she considers his or her home. That is not what the court stated. I also do not consider that as the import of the *Zuze* case or the right enshrined under s 74. While a summary judgment procedure is not a trial where parties give oral evidence, it is still a full hearing in the sense that all parties are given an opportunity to relate to all facts essential for consideration by the court in affidavits and in oral argument. The court is thus still given an opportunity to assess all the relevant circumstances.

The procedure for a summary judgment is fundamentally different from a default enquiry, where a default judgment is entered without the occupier being heard, in which case there would not be an opportunity for the respondent to be heard on the relevant circumstances. That was the case in *Zuze,* as the proceedings therein had emanated from a default judgment. Once all the parties are before the court, s 74 requires that they be heard and that the court consider "all the relevant circumstances" before ordering the eviction of the respondent from his or her home. It cannot be correct that the import of s 74 of the Constitution militates against the granting of summary judgment in all matters involving the relief of eviction.

The court thus performs a balancing act of the competing rights and interests of the parties. The resultant order cannot be taken to be arbitrary to violate s 74. This approach is what PATEL JA (as he then was) further enunciated at p 16 in *Zuze* (*supra*) when he said:

> "In the final analysis, **what is required in considering all the relevant circumstances is a balancing exercise between the rights and interests of all the parties involved in or affected by the eviction dispute.** In the instant case, the relevant circumstances are relatively clear. The appellant was a *bona fide* occupier who was not aware that the subdivision that he occupied was illegal. He had been residing on the land in question for almost nine years. What is not apparent from the record is whether he had suitable alternative accommodation or land to occupy consequent upon his eviction from the property.
>
> What emerges from the foregoing factual conspectus is that the appellant had a direct and substantial interest in the matter notwithstanding that his occupation of the property might have been illegal. In terms of s 74 of the Constitution, he had a procedural right to be heard *apropos* all the relevant circumstances pertaining to his occupation of the property. **Had these circumstances been brought to the attention of the High Court** in Case No. HC 9554/16, it would have been dutybound by the dictates of s 74, firstly, **to afford the appellant an opportunity to be heard and, secondly, to consider and assess all the relevant circumstances before granting the eviction order in favour of the first respondent**." (*my emphasis*)

In *casu,* all the parties were given an opportunity to be heard. That satisfied the first part of the court's obligation arising from the provisions of s 74. On the second part, I am enjoined to consider "all the relevant circumstances" and thus perform a balancing act before concluding whether an eviction order should be granted in this case. The balancing of the rights and interests of all parties before me means that the court does not look only at the respondent's circumstances and shut its mind to those of the applicant or the person seeking eviction. Mr *Zhuwarara* sought to urge me to consider only the applicant's interests or circumstances and ignore those of the applicant. That is not the correct approach set out in the *Zuze* case.

The circumstances which the court must consider depend on the facts of each case. Such considerations would include, *inter alia*, whether the occupier is *bona fide* and the number of years of residence on the property. In this case, there was no dispute that the respondents constructed structures on the individual subdivisions or stands on the property, which they regard as their homes. It is not in dispute that they have been in occupation for over 12 years with their families. Mr *Zhuwarara* argued that the applicant is not concerned with where they will go. I am also alive to the fact that the applicant has not been rigid. It was not disputed that, for a long time, it had refrained from seeking the respondents' eviction from the land and had preferred to

regularise their stay. There is no dispute that the applicant has offered the respondents the opportunity to regularise their stay at the property by concluding agreements of sale. It extended the olive branch for such regularisation, which has been duly taken by the 1st respondent. The 1st respondent entered into a deed of settlement and agreed to pay for the stand she occupies, the purchase price calculated at US$15.00 per square metre. The respondents in para 3.6 of their papers acknowledged that the applicant's regularisation process is a welcome exercise, yet they did not avail themselves of the opportunity.

They were further informed by the court when it dismissed the application for a *declaratur* by some of the respondents regarding their alleged rights over the land before MUCHAWA J that they were in illegal occupation of the applicant's property. All respondents, including those not parties to the judgment, had the opportunity to reconsider and regularise their occupation. They did not. The law, however, is clear that the illegality of the respondents' occupation is immaterial. See *Homeless Zimbabwe Homeless People's Federation & Ors* v *Minister of Local Government and National Housing & Ors* SC 94/20 at p 14, where PATEL JA (as he then was) affirmed this position in the following words:

> "The relative immateriality of the applicant's illegal occupation was further underscored, at pp. 18-19:
>
> > "There is no doubt that the appellant has no substantive real rights in the property in question. Nevertheless, although s 74 of the Constitution does not confer any substantive real rights, it operates to guarantee the procedural rights that I have elaborated above on any person who stands to be evicted from his home. Moreover, the ambit of the protection accorded by s 74 is not confined to strictly legal occupants of land or property. Having regard to the plain and ordinary connotation of a 'home', that protection extends as well to unlawful occupiers of any property that can be characterised as constituting a home."

While they have been on the land for a long time with their families and have no alternative accommodation, the court must also consider that the applicant has extended an olive branch for a long time to help them regularise their stay. There was an offer to enter into proper contracts of sale with the applicant. The applicant has also not received any consideration for their stay on the property for this long time. As submitted by Mr *Banda*, it is clear from the record that the applicant has been magnanimous and has not simply sought their eviction without giving them the opportunity to regularise their possession of the land. The respondents did not

take up the offer. Their being rendered homeless by the eviction after being given a lengthy period to regularise their illegal possession can be considered self-inflicting. To that extent, the respondents are being unreasonable and are clearly shooting themselves in the foot. They cannot be considered *bona fide* occupiers. Given the judgment of this court before MUCHAWA J, they ought to have accepted their fate and sought to regularise their occupation. To insist on staying on the applicant's property *ad infinitum* without paying anything cannot be justified by any standards, no matter the number of years they have unduly benefited from that occupation at the expense of the applicant. Their entitlement to accommodation must be balanced against the applicant's entitlement to receive a benefit from its own property. It would be improper and unjust in the circumstances for the balance of hardship to be tilted in their favour.

The regularisation process the applicant commenced was the only legitimate way for them to avoid eviction. It would ensure that both parties benefit from the land and that they co-exist. The respondents' stance that only their interests matter is selfish and cannot be sanctioned by a court of law. I agree that, in the circumstances where the respondents have snubbed efforts to regularise their stay on its land, the applicant cannot be overburdened with providing accommodation to the respondents indefinitely and at no cost. A proper balance of the interests of all the parties, given the circumstances, does not support that they be protected by the court from being evicted. The balance of the competing interests favours their eviction. Their stubborn stance is an acceptance that the only proper way to resolve the impasse is to resort to an eviction order.

It is trite that s 74 of the Constitution does not preclude the granting of an eviction order in all cases. That is not the import of that constitutional provision. Thus, PATEL JA (as he then was) clarified this position at p 15, where he made the following pertinent remarks:

> "**In any event, it is salutary to point out that s 74 does not preclude eviction generally and clearly acknowledges the possibility of informal settlers being evicted under due process, even if this results in the loss of their home**. However, this does not mean that homelessness should invariably and immediately eventuate in all cases." (*my emphasis*)

In the circumstances of this case, it is in the interests of justice that an eviction order be granted. However, the period within which they should vacate the property should be extended to seven (7) days from the date of the court order, rather than the 48 hours sought, which is very

short. I have already found that the respondents have no *bona fide* defence; accordingly, the application ought to succeed. The argument that granting summary judgment ordering the eviction of the respondents would violate s 74 of the Constitution is without merit. I fully associate myself with the remarks by BHUNU JA in *Mashayamhanda* v *Bariadie Investments (Pvt) Ltd & Anor* SC 17/24 at pp 13-14, where he said:

> 39. …I am mindful of the fact that the court needs to balance the parties' competing rights and obligations.
>
> 40. In this case, **the odds**, **the law and the balance of convenience favour the respondent, which has done nothing wrong, to be deprived of its property rights specifically protected by the laws of the land**." (*my emphasis*)

DISPOSITION

The respondents' defence cannot be classified as *bona fide*. It is completely unarguable. There is no doubt that they are in unlawful occupation of the applicant's property. This they conceded, and it was also part of the findings of fact made by this court before MUCHAWA J, and were never overturned on appeal. The position taken that they derive rights in the property from ZANU-PF Mukuvisi-Tashinga District is not founded on anything valid. Having considered all the relevant circumstances as mandated in terms of s 74 of the Constitution, I find that the balance of convenience favours the applicant. The respondents' continued stay on the applicant's property for an extended period, while offering nothing in return for their occupation and use of the land, would be unconscionable in the circumstances.

It is clear that the respondents, being in illegal possession of the land, have no valid defence to proffer. The court cannot lend itself to an illegality. See *TM Supermarkets (Pvt) Ltd* v *Nkomo & Ors* SC 28/20. I fully endorse the sentiments by BHUNU JA in *Mashamhanda* (*supra*) para 30, where he said:

> "In my view, the proffered opinion is bad at law and goes against the grain of Zimbabwean public policy and established legal principles that **one cannot be allowed to benefit from his own wrong or unlawful conduct**. The applicant having admitted that he is unlawfully occupying the respondent's property in bad faith as determined by the Supreme Court, **such type of conduct cannot be sanctioned by the courts**. **It is unconscionable and manifestly unjust for the courts to perpetuate unlawful or wrongful conduct**." (*my emphasis*)

The respondents are occupying the property in bad faith. Some of them were before the court in Case No. HCH 6446/23 and were found to be in illegal occupation of the property. That

judgment also provided an opportunity for the other respondents, who were not parties to it, to reconsider their stance. They have snubbed all the applicant's efforts to allow them to reside on the land, subject to payment of its value. While they acknowledge that the regularisation process is a welcome exercise, they have maintained that they can stay on the land *ad infinitum* without paying anything for it. That position is utterly unreasonable. They do not want to be evicted from the land, yet they do not want to pay for it. The court cannot reward a litigant who adopts that attitude and thinks he or she is the only person whose rights and interests matter. I endorse the position taken in *Divvyland Investments (Pvt) Ltd* v *Chiweza* 2021 (2) ZLR 376 (S) at 387C, where GUVAVA JA said:

> "The ownership rights of the appellant must be protected. In the case of *Alspite Investment (Pvt) Ltd v Westerhoff* 2009 (2) ZLR 226 (H), it was stated that there are no equities in an application for *rei vindicatio* as it is a principle of our law that an owner, as a general rule, cannot be deprived of his property against his will."

This is a proper case for granting summary judgment ordering the eviction of the respondents from the applicant's property. There are no arguable or triable issues arising at all.

As regards costs, where a litigant has been grossly unreasonable and pursues a defence that is frivolous or vexatious, the court would be justified to mark its displeasure on that conduct by awarding an abominable order of costs. Thus, abuse of the court process warrants an order for costs on a legal practitioner and client scale. See *Takashinga Kare Housing Pay Scheme* v *City of Harare & Ors* SC 88/25 at p 16.

The respondents, despite being clearly in illegal occupation of the applicant's property, persisted in opposing the application. They simply want to occupy the land for free and have done so for all this long at the expense of the rightful owner of the property, whose right to the property is apparently also protected by s 71(2) of the Constitution. That blatant abuse of the court process ought to be condemned by an award of costs on a legal practitioner and client scale. They cannot seek that the court sanction their illegal occupation of the property. This court has no jurisdiction to sanction an illegality.

Litigants cannot abuse the court process and expect kid-glove treatment. For any legal practitioner to pursue a defence with absolutely no reasonable prospects of success would itself amount to conduct which may even warrant costs *de bonis propriis*. The pursuit of the defence to

this end is not a pursuit of justice but merely a dilatory tactic to harass the applicant. In *Selex Es P.A* v *State Procurement Board & Ors* SC 45/16 at p 7, BHUNU JA succinctly stated as follows:

> "While parties and lawyers are entitled to have their day in court, they must exercise that right responsibly with due care and diligence not to abuse court process. **It is rather unethical and an abuse of court process for litigants and particularly lawyers to waste the court's valuable time presenting dead unarguable cases in the vain hope that flogging a dead horse will somehow resurrect it to life**." (*my emphasis*)

I, therefore, find the costs on a legal practitioner and client scale to be proper and just in the circumstances.

The applicant sought an amendment to para 3 of the draft order, seeking to delete it entirely. That paragraph relates to the demolition of the illegal structures erected by the respondents on the applicant's property. There is no reason not to grant the application in terms of the amended draft order.

Accordingly, it is ordered as follows:

1. Summary Judgment be and is hereby granted against all 2nd-4th, 7th, 12th, 14th-16th, 18th-20th, 22nd-23rd, 26th-27th, 29th-32nd, 34th-35th, 37th, 39th-42nd, and 44th-50th respondents
2. The 2nd-4th, 7th, 12th, 14th-16th, 18th-20th, 22nd-23rd, 26th-27th, 29th-32nd, 34th-35th, 37th, 39th-42nd, and 44th-50th respondents, and anyone claiming occupation through them, shall vacate the stand listed against each respondent's name on the schedule attached to the Summons in Case No. HCH 322/25 within seven (7) days of the granting of this order, failing which the Sheriff of Zimbabwe be and is hereby authorised to evict them with the assistance of the Zimbabwe Republic Police.
3. The 2nd-4th, 7th, 12th, 14th-16th, 18th-20th, 22nd-23rd, 26th-27th, 29th-32nd, 34th-35th, 37th, 39th-42nd, and 44th-50th respondents shall pay the applicant's costs of suit on a legal practitioner and client scale jointly and severally, the one paying, the other to be absolved.

DEMBURE J: ……

Bruce Tokwe Commercial Law Chambers, applicant's legal practitioners
Venturas & Samkange, 1st respondent's legal practitioners
Laita & Partners, 2nd-4th, 7th, 12th, 14th-16th, 18th-20th, 22nd-23rd, 26th-27th, 29th-32nd, 34th-35th, 37th, 39th-42nd, and 44th-50th respondents' legal practitioners